

Constitutional Law - Undergraduate Level Assessment 9

Instructions

- Answer all questions.

Multiple Choice

Question 1

(2 marks)

Can countries rely on their domestic law as an excuse to violate their obligations under international law?

- A. Domestic law always prevails over international law
- B. Only customary international law prevails over domestic law
- C. Obligations under international law prevail over domestic law
- D. Constitutional obligations always prevail over obligations under international law

Question 2

(2 marks)

Which statement best describes the nature and function of Kelsen's Grundnorm?

- A. The ultimate source of a legal system's morality.
- B. The rule that distinguishes norms from habits of obedience.
- C. The constitution of a state.
- D. A presupposition that facilitates our understanding of the legal system.

Question 3

(2 marks)

Is piracy under international (jure gentium) law subject to universal jurisdiction?

- A. Piracy jure gentium is subject to flag State jurisdiction
- B. Piracy jure gentium is subject to universal jurisdiction
- C. Piracy jure gentium is subject to port State jurisdiction

D. Piracy jure gentium is subject to nationality-based jurisdiction

Question 4

(2 marks)

Posner denies the autonomy of law on two grounds. Name one of them.

A. He denies that law develops independently of social and economic forces.

B. He claims that law is economically immoral.

C. He rejects a positivist account of law.

D. He opposes any sociological analysis of the law.

Question 5

(2 marks)

Who was an exponent of "natural law with a variable content"?

A. John Rawls

B. Stammler

C. Jerome Hall

D. John Finns

True / False

Question 1

(2 marks)

Gemeinschaft is considered a type of civic society, whereas Gesellschaft is viewed as a form of civil society.

True

False

Question 2

(2 marks)

In Hohfeld's scheme of jural relations, power and liability are indeed contradicting concepts.

True

False

Question 3

(2 marks)

Holland argued that law is solely a product of moral principles rather than state enforcement.

True

False

Question 4

(2 marks)

Dworkin suggests that equality of resources is measured when no one would prefer another's bundle of resources to their own.

True

False

Question 5

(2 marks)

The rule of recognition confers power and imposes duties on judges to decide cases within a legal system.

True

False

Long Form

Question 1

(10 marks)

Discuss the nature of the UK Constitution, focusing on its uncodified status and the various sources from which it derives. Analyze the implications of this structure for governance and legal interpretation.

Type your answer here...

Question 2

(10 marks)

Discuss Durkheim's concept of mechanical and organic solidarity and analyze their respective relationships to the types of law within society, focusing on repressive and restitutive law.

Type your answer here...

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